

Our Ref: RR:MS:R240096

3 June 2024

Delaney Roberts Specialist Family Lawyers
PO Box 206
Adamstown NSW 2289

Dear Colleagues

COOKE & COOKE - FAMILY LAW MATTER

Dear Colleagues

Our client wishes to have all the material he needs to make good decisions at mediation before any such mediation occurring. Paragraph 13 of the Orders of 11 April 2024 notes the intention of the parties to attend mediation within 3 months. Prompt provision of the documents requested below will allow for that intended timetable to be met.

Notes in red re what they say they have included in dropbox.

1. In the following paragraphs we ask for various bank account statements. If your client wishes, to redact her address, she may do so. We note the bulk of them cover the period when the parties were living together so the address will not be an issue.
2. The requests are for a number of years. This is because our client has had no visibility of your client's accounts. She has made significant transfer from joint accounts to private accounts which have only come to our client's attention recently. He needs reassurance there have been no other such withdrawals by inspecting the statements.
3. We can see from documents provided by your client, and from documents produced on subpoena, that:
 - a. Without our client consent or knowledge, your client removed the following amount in November 2023
 - i. \$173,000 from Rocket loan #2136 and deposited to her account #2136. Your client has provided statements for this account for August 2022 to 2 February 2024. Please provide them from 1 January 2018 to August 2022, and from February 2024 to date. **They say included.**
 - ii. \$166,037 deposited to Westpac account #533. We have statements for this account from your client from June 2023 to November 2023. Please provide statements from 1 January

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PERSPECTIVE

2018 to date. They say included from 29.12.17 to 20.6.23; and 29.2.24-31.5.24

4. Your client has produced statements for Westpac #533 for June 2023 to November 2023. Please provide them from January 2018 to May 2023 and December 2023 to date. They say part of 3a11 which is correct it is a double request.
5. Your client has produced statements for Westpac #525 for June 2023 to November 2023. Please provide them from January 2018 to May 2023 and from December 2023 to date. They say included. 29/12/17 to 30.6.23, 29.2.24 to 31.5.24
6. Please provide statements for account #193 from 1 January 2018 to date. They say this is Stephen's account?
7. Your client sold a property 28/9-11 Manning Street South Brisbane in 2012 for \$380,000. Please provide statements for any mortgage secured against the property for 12 months preceding and to discharge. Please provide settlement schedule provided by your client's conveyancer (Courtice Neilsen) showing monies received on settlement. Please provide statements for the account to which the sale proceeds were deposited for a period of 12 months from date of settlement. They provide statements for loan #2919. 287K owing July 2012 with 249K owing Jan 2014. Does not show what net funds received or how applied. The o/s say rest of docs re sale of Manning Street in house which Stephen says it is incorrect as heather took all documents.
8. Your client's affidavit of 24 February 2024 refers to her purchase of 703/1 Como Street Southport. Please provide statement for her loans to fund the purchase for a period of 12 months from the date of purchase. The o/s say rest of docs re sale of Manning Street in house which Stephen says it is incorrect as heather took all documents.
9. We have only statements for Loan #2919 for Feb to July 2023. Please provide January 2018 to Feb 2021, and July 13 2021 to February 2022. They say they include 7.7.17 to 9/8/18 and the subsequent are included in answer to 3a1 as the statements are combined with #2136
10. We have only statements for account #2594 for April 2022 to January 2023. Please provide from January 2018 to April 2021, and 18 January 2023 to June 2024. They say joint account and Stephen can obtain these himself.
11. We have only statements for account #5055 April 2021 to Oct 2021, and Oct 2022 to October 2023. Please provide January 2018 to April Feb 2021, and October 2021 to October 2022. They say Heather has never had account number #5055

12. We have only statements for account #5063 for April 2022 to December 2023. Please provide January 2018 to April 2022. They say joint account and Stephen can obtain these himself.
13. We have only statements for account #2919 for Feb to July 2023. Please provide January 2018 to Feb 2021, and July 13 2021 to February 2022. They do not respond to this in letter but this seems to repeat our para 9.

Yours faithfully
RAMSDEN FAMILY LAW

MATTHEW SHEPHERD
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